

25SMCV02778 25SMCV02778

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Case Number: 25SMCV02778 Hearing Date: July 10, 2026 Dept: P

Tentative

Ruling

Alfreda

Frietas v. Schindler Elevator Corporation, et al., Case No. 25SMCV02778

Macerich

Vintage Faire LP's Motion to Transfer

Hearing

Date: July 10, 2026

Background

Plaintiff

Alfreda Frietas ("Frietas") sued Defendants Macerich Vintage Faire LP ("Macerich"), and Schindler Elevator Corporation, for negligence arising out of an accident involving an escalator at a JC Penny's store inside the Vintage Faire Mall located at 3401 Dale Road, Modesto, CA 95356. (Complaint, ¶ 5.) Macerich owns the mall and leases the store space to JC Penny's.

In

September 2025, Frietas amended the complaint to add JC Penny's as a defendant.

On January

8, 2026, the Court overruled Macerich's demurrer to Frietas's negligence claim.

On March

17, 2026, Macerich moved to transfer venue to Stanislaus County. On June 29, 2026, Frietas filed opposition. On July 2, 2026, Macerich replied.

Arguments

Macerich

argues that venue should be transferred to Stanislaus County, where the accident at issue occurred, because it is more convenient to Frietas and the witnesses in this case. (Motion to Transfer, pp. 2-3.) Macerich contends that all other defendants in this case are based in or around Modesto, California, where the accident occurred, so it would be inconvenient to try this case in Los Angeles. (Id. at pp. 8-9.) Macerich is the only defendant with a principle place of business in Los Angeles, and it argues that its presence does not justify trying the case in Los Angeles. (Id. at p. 11.)

In

opposition, Frietas argues that venue is proper in Los Angeles County because it is where Macerich's principal place of business is, and that Macerich has not demonstrated that transfer is warranted. (Opposition, p. 3.) Frietas argues that her choice of forum is entitled to great weight and that her choice to sue in Los Angeles should be respected. (Id. at p. 4.) Frietas argues that Macerich has not set forth the names of the witnesses who would be inconvenienced, the nature of the testimony expected from each, and the reasons why attendance would be inconvenient, as required by *Flanagan v. Flanagan* (1959) 175 Cal.App.2d 641.

In reply,

Macerich argues that Frietas does not contest the underlying facts of the case, which all occurred in Stanislaus County. (Reply, p. 2.) Macerich argues that convenience and the ends of justice would be best served by transferring the action. (Id. at p. 3.) Macerich then argues that the witness declarations are sufficiently specific and that they detail the inconvenience trial in Los Angeles would pose. (Id. at p. 5.)

Motion

to Transfer

In a

personal injury case, the superior court in either the county where the injury occurs or the county where defendants reside at the commencement of

the action is the proper court for the trial of the action. (Code Civ. Proc., § 395, subd. (a).)

Code of

Civil Procedure Section 396b provides:

If

an action or proceeding is commenced in a court having jurisdiction of the subject matter thereof, other than the court designated as the proper court for the trial thereof, under this title, the action may, notwithstanding, be tried in the court where commenced, unless the defendant, at the time he or she answers, demurs, or moves to strike, or, at his or her option, without answering, demurring, or moving to strike and within the time otherwise allowed to respond to the complaint, files with the clerk, a notice of motion for an order transferring the action or proceeding to the proper court, together with proof of service, upon the adverse party, of a copy of those papers. Upon the hearing of the motion the court shall, if it appears that the action or proceeding was not commenced in the proper court, order the action or proceeding transferred to the proper court.

(Code Civ.

Proc. § 396b, subd. (a).)

The court

may change the place of trial when the convenience of witnesses and the ends of justice would be promoted by the change. (Code Civ. Proc., § 397, subd. (c).) The moving party has the burden of proving both conditions in Section 397, subdivision (c). (Ryez v. Superior Court of San Francisco Cty. (2022) 81 Cal.App.5th 824, 836.) “Before the convenience of witnesses may be considered as a ground for an order granting a change of venue it must be shown that their proposed testimony is admissible, relevant and material to some issue in the case as shown by the record before the court. [Citation.] The declaration or declarations supporting the motion should set forth the names of the witnesses, the nature of the testimony expected from each, and the reasons why the attendance of each would be inconvenient. [Citation.]” (Id. at 836, (citations and quotations omitted)). “The convenience of witnesses whose testimony will be merely cumulative is entitled to little consideration.” (Corfee v. S. California Edison Co. (1962) 202 Cal.App.2d 473, 477.) Further, the court does not consider as a factor the inconvenience of the parties attending trial in deciding a motion to change venue. (Wrin v. Ohlandt (1931) 213 Cal.

158, 160.)

Analysis

Under Code

Civ. Proc., § 395, subd. (a), venue is proper both in Santa Monica, where Defendant Macerich has its principle place of business, and in Stanislaus County, where the accident occurred.

a.

Convenience
of witnesses

Macerich

provides declarations from three witnesses describing the burden of trial in Los Angeles., JC Penny's General Manager Susan Horn, JC Penny's HR Baljit Bassi, and Schindler Elevator Corporation technician Ryan Bethke. Susan Horn was called to the scene when Frietas was injured and would provide eyewitness testimony. (Horn Decl., ¶ 2.) Susan Horn lives in Stanislaus County and works at the JC Penny Store at 3401 Dale Road, Modesto, CA. (Horn Decl., ¶¶ 4-5.) Baljit Bassi was the HR Supervisor on duty at the time of the incident and would testify about his investigation immediately following the incident. (Bassi Decl., ¶ 2.) He also lives and works in Stanislaus County and states that travelling to Los Angeles would cause hardship. (Bassi Decl., ¶¶ 4-5.) Ryan Bethke is Schindler Elevator Corporation's technician who would testify about the escalator's service history. (Bethke Decl., ¶ 2.) Ryan Bethke lives in Stockton, California, in San Joaquin County, which neighbors Stanislaus County. He attests that travelling to Los Angeles would be a heavy burden. (Bethke Decl., ¶ 9.) Macerich's declarations satisfy the *Flanagan v. Flanagan* requirements Frietas invokes in opposition to this motion. The declarations provide the names of the witnesses, the type of testimony they would provide (eyewitness testimony and elevator maintenance testimony), and the burden if the action remains in Los Angeles. (See *Flanagan v. Flanagan*, (1959) 175 Cal.App.3d 641, 644.)

Plaintiff

argues that remote appearance technology mitigates the travel burden. Venue is incredibly inconvenient in Santa Monica if the witnesses appear in person. Santa Monica is a five or six hour drive from Modesto, or an hour flight from Sacramento, plus several hours driving to Sacramento and to Santa Monica from

any of the Los Angeles-area airports. In addition to the travel time, the expense for travel and time off work would be significant because the witnesses would have to stay in Los Angeles for several days. If this case were heard in Stanislaus County, it is very possible that some witnesses would not even have to take a full day off work for trial. Remote appearances would also mitigate this burden but, as discussed below, have their own set of consequences that create other inconveniences. The Court finds that Macerich has met its burden of showing that Stanislaus County would be a more convenient venue for the witnesses in this case.

b.

Ends
of justice

Giving

Frietas's preference the weight it is due, the ends of justice are better served by trying this case in person, in a venue convenient to the witnesses. Though witnesses may appear in this court remotely, the technology and internet connections allowing remote appearances are not always reliable. Where possible, in person appearances are significantly more effective. The Court has presided over trials where extensive remote testimony was unavoidable. Those cases posed significant logistic and technological challenges on both the witnesses' end and the Court's end. Additionally, when a witness testifies in person, counsel is better able to connect with the witness, there are fewer delays responding to questions, the jury pays closer attention, and the jury is better positioned to evaluate credibility. In many circumstances, those challenges are unavoidable. That is not the case here. The only factor weighing in favor of keeping this case in Santa Monica is Frietas's preference. All other factors indicate that justice would be better served by transferring this case to Stanislaus County.

The Court

finds that hearing this case in Santa Monica would place an undue burden on the witnesses and that the interests of justice would be better served by transferring the case to Stanislaus County.

Conclusion

Macerich's

Motion to Transfer is GRANTED.

Macerich's

pending motion for reconsideration must be heard by this Court under CCP § 1008(a). The hearing on Macerich's Motion for Reconsideration is advanced to August 3, 2026, with the parties to file opposition and reply per code.

The

pending Motion for Reconsideration also constitutes good cause to delay transfer an additional ten days beyond the statutory 20 days for filing a writ of mandate pursuant to Code Civ. Proc. §§ 399-400. Assuming all fees are properly paid and no writ is filed, this matter will transfer to Stanislaus County Superior Court on August 10, 2026.